

WRITTEN ARGUMENT

To,
The Secretary,
Uttar Pradesh Real Estate Regulatory Authority (UP RERA),
H-169, Sector Gamma-2, Greater Noida, Gautam Buddh Nagar.

Subject: **Violation of Order Dated 09.07.2025 and False Representation by M/s Newtech Promoters and Developers Pvt. Ltd. – Complaint No. NCR144/10/62470/2020**

Respected Sir/Madam,



1. THE BUILDER'S SPECIFIC VIOLATIONS OF RERA ORDER DATED 09.07.2025

This Honourable Authority's order dated 09.07.2025 specifically directed:

1. The Builder to submit compliance documents within 15 days (by 24.07.2025) as per Sections 38/40/63 and Rule 24 of UP RERA Rules, 2017; and
2. The Builder to deliver physical possession of unit F1103 by 08.10.2025.

Despite these clear directives, the Builder has:

- **Failed to submit any compliance documents** by the 15-day deadline of 24.07.2025.
- **Made false representations during the last hearing** claiming they "applied for NOC from UPSIC"; and
- **Failed to deliver possession** by the stipulated deadline of 08.10.2025.

Legal Violations

The Builder's actions violate:

1. Section 38: Making false statements before RERA constitutes contempt of the Authority (RERA has powers similar to a civil court).
2. Section 40: False representation impedes proper delegation of compliance verification.
3. Section 63: Directors are personally liable for the Builder's false claims.
4. Rule 24: Mandates truthful disclosure during proceedings (violated by the Builder's false statement).